

STUDENT ATTENDANCE REQUIREMENTS AND PROCEDURES

Loudoun County Public Schools requires that students attend school daily and arrive to class on time. Parents/Guardians are expected to support and encourage their student's attendance and to communicate regularly with school staff when their student will be absent for any reason. These regulations establish systemwide attendance definitions, standards and procedures.

A. Definitions

1. An **attendance conference** is a face-to-face meeting or a virtual interaction consisting of a multi-disciplinary team. A conference must be held after the tenth unexcused absence.
2. An **attendance officer** works with school-based teams and parents/guardians to address repeated unexcused absences and is authorized under the Code of Virginia to file a complaint with the courts against the parent/guardian or student for failure to comply with compulsory attendance regulations.
3. An **attendance plan** is a plan developed jointly by a school representative, such as a school principal or designee, the parent/guardian, and the student to resolve the student's nonattendance and engage the student in regular school attendance. An attendance plan shall be developed if the student has five unexcused absences.
4. **Chronic absence** is the accumulation of excused and unexcused absences which occur for any reason to a total of ten percent or more of the school year.
5. **Court referral** means filing a complaint to the Juvenile and Domestic Relations District Court after a direct contact has been made with the student's parents/guardians and either the parent/guardian refuses to comply with compulsory education requirements or multiple intervention attempts have failed. Documentation of interventions regarding the student's unexcused absences, such as copies of the attendance plan, documentation of conference meetings, and compliance with § [22.1-258](#) of the Code of Virginia must be provided to the intake worker.
6. The **instructional school day** is the length of a regularly scheduled school day for an individual student. The standard school day for grades K-8 in LCPS is six hours and 45 minutes, including lunch and transition times. The standard school day for grades 9 - 12 in LCPS is six hours and 48 minutes, including lunch and transition times.

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7. A **multi-disciplinary team** is a school-based team that convenes to review student records and participates in prevention and intervention to address excessive absences. These services should address academic, social-emotional, and familial issues to improve regular school attendance. Team members may include, but are not limited to, the following: an administrator, school counselor, school social worker or school psychologist, school nurse, student assistance specialist, special education and general education teachers, and attendance officer. Community providers may also attend, as appropriate.

8. **Parent/Guardian** means the parent or parents, guardian or guardians, legal custodian or legal custodians, or other person or persons having legal control or charge of the student.

B. Attendance Procedures.

School attendance is required by law, as outlined in the Code of Virginia, Section [22.1-254](#). The principal or designee shall notify parents/guardians annually of the attendance requirements. This notification shall clearly indicate that the parent/guardian must contact the school whenever the student is absent to provide a valid excuse for absence for all or part of the school day. The principal or designee shall indicate written, voice, and electronic options available for parents/guardians to use to report the reason for an absence. They shall also indicate that if the parent/guardian does not contact the school within three days of the absence, the absence will be considered unexcused. Teachers are required to record class or daily attendance. Absences and tardy arrivals will be addressed by individual interventions and possible consequences for students.

1. Attendance Plan. Whenever a student fails to report to school for a total of 5 days within a school year and there is no indication that the parent/guardian is aware of and supports the student's absence, the principal or designee shall notify the parent/guardian of the absences and request that the parent/guardian contact the school to provide additional information about the absences.

- a. The principal or designee will make reasonable effort to ensure the parent/guardian is contacted directly, either in person or via phone, and will develop an attendance plan with the parent/guardian.
- b. The written plan shall identify reasons for nonattendance and barriers that impede daily attendance along with strategies to address such reasons and support regular attendance.

2. Attendance Conference. If the student is absent additional days, after direct contact with the parent/guardian, and the school has received no indication that

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the parent/guardian is aware of and supports the student's absences, the principal or designee will schedule an attendance conference including a multi-disciplinary team, the student, and the parent/guardian.

- a. This multi-disciplinary team should include the principal or designee, school counselor and school social worker. Other members may include school psychologist, attendance officer, school nurse, student assistance specialist, or other staff members, and if appropriate, may include community providers to resolve issues related to the student's nonattendance.
- b. The conference shall be held no later than ten days after the student's tenth unexcused absence. The conference team shall monitor the student's attendance and may meet again to address concerns and/or develop different interventions if the student's attendance does not improve.
- c. The principal or designee shall document that the conference has been held and detail additional interventions. If the principal or designee, after reasonable efforts have been made, are unable to contact the student's parent(s)/guardian(s), the conference shall be held regardless of whether the student's parent/guardian approves of the conference.

3. Progress Monitoring or Court Referral. The multidisciplinary team will continue to monitor student's attendance. If the parent/guardian is intentionally noncompliant with compulsory attendance requirements or the student is resisting parental/guardian efforts to comply with compulsory attendance requirements, the principal or designee shall make a referral to the attendance officer to review the student's lack of progress towards resolving nonattendance issues. The attendance officer shall schedule a conference with the student and parent/guardian within ten days. If the parent/guardian or student continue to be noncompliant, the attendance officer may file a complaint with the Juvenile and Domestic Relations District Court alleging the student is in need of supervision as defined in the Code of Virginia, Section [16.1-228](#) or institute proceedings against the parent/guardian pursuant to the Code of Virginia, Section [18.2-371](#) or Section [22.1-262](#).

C. Absentee and Early Release Records.

Principals shall arrange to have excused absences entered in the student information system no later than the first hour of the school day in elementary schools,

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and by the end of the first period in middle and high schools. Parents/Guardians will be notified each morning by phone, and email or electronically where available, when students are absent from school without parent/guardian notification and reminded to contact the school as soon as possible. School records shall be corrected from unexcused to excused after parent/guardian contact and verification that is acceptable to the principal or designee.

1. Early Dismissals. When a student leaves the school premises during regular school hours for any reason, parents/guardians must provide advanced notice and permission. Parents/Guardians of elementary students must sign a school release log. Parents/Guardians of secondary students must arrange for early release through the school attendance office and comply with release procedures.

A principal or designee shall not release a student during the day to any person not authorized to assume responsibility for the student. All students, including declared 18-year-old students, must comply with established release procedures. Records of early release will be maintained, and individual interventions will be implemented for recurring incidents, when necessary.

2. Late Arrivals/Tardiness. Any student arriving after the official start of the class or school day will be considered late. When students arrive late to school, they must use appropriate school-based check in procedures. Records regarding tardiness will be maintained and appropriate consequences imposed for recurring tardiness.

3. Parent/Guardian Explanation of Absences. Parents/Guardians should notify the school prior to, or at the start of, the school day when their child will be absent. When the student has been absent from school for any reason other than for a school sponsored activity, and the parents/guardians have not previously contacted the school, the parent/guardian must send written or electronic communication citing the reason for the absence to the principal or designee no later than three days following the student's return to school.

4. Prearranged Absences. Parents/Guardians are encouraged to minimize absences during the school year, and to plan family trips and vacations during school holidays. Requests for prearranged absences for longer than one school day must be submitted to the principal or designee within a reasonable time for the school to review and approve or deny the request.

Due to various demands on teachers for make-up work, teachers will not be expected to provide classwork or assignments for students that take family trips or vacations during the regular school year. Teachers shall also have the discretion to decide the type and

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amount of work and when students shall make up work for prearranged absences. Teachers shall not be required to provide assignments in advance of the absences but may do so at their discretion. Parents/Guardians and students are encouraged to work with teachers prior to the absence to develop a plan for making up missed work, including expected deadlines.

D. Excused Absences.

An excused absence means an absence of an entire assigned instructional day. Absences will be marked excused when the absence aligns with Policy 8140 and the parent/guardian provides a reason that is acceptable to the school administration.

E. Unexcused Absences.

The following shall be classified as unexcused absences:

1. Truancy
2. Missing a ride, a bus, or car trouble
3. Prearranged absences without prior notification and approval
4. Failure to produce an appropriate explanation for the absence or provide requested documentation to the principal or designee per Policy 8140.

F. Chronic Absence.

Chronic absence, missing more than ten percent of the school year for any reason, has been associated with lower reading and math achievement at the elementary level, and class failure and drop out at the secondary level. School staff and attendance officers will monitor chronic absenteeism during the school year and will work with parents/guardians and students to ensure compliance with compulsory attendance laws.

G. Mandatory Withdrawal.

To comply with state record keeping requirements, students shall be withdrawn from LCPS student membership after fifteen consecutive days of absences regardless of whether their absences are excused or unexcused. Withdrawn students are not excused from mandatory school attendance requirements and are expected to re-enroll. Students who withdraw to attend a non-LCPS school should notify the Office of Student

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Services as soon as possible and make reasonable efforts to follow the withdrawal procedures.

H. Students 18 Years of Age or Older.

Students who are 18 years of age or older are not required by state law to attend school. If they choose to enroll, however, they are expected to be in regular school attendance under Policy 8140.

[Former Regulation 8-17]

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Leg Refs: Virginia Code § [22.1-254](#); [16.1-228](#); [18.2-371](#); [22.1-262](#); [8VAC20-730-10](#); [22.1-277.05](#); [22.1-258](#); [8VAC20-110-130](#);

Cross Refs: Policy [8120](#), Compulsory Attendance; Policy [8140](#), Student Attendance Requirements and Procedures.